HEADNOTE

"1. In certain constellations, a finding of direct infringement of a device claim can be made if the patent infringer appropriates the actions of its customer as an extended workbench and it would be inequitable from a value perspective to hold the infringer liable merely for indirect patent infringement. However, one must always consider the danger that this will blur the boundaries drawn by the legislator between the legal consequences of direct and indirect patent infringement. Therefore, liability for direct patent infringement in such circumstances can only be assumed if completion of the device in accordance with the patent is concretely defined and can be expected with certainty. This is unproblematic, for example, when a kit for assembly into a complete device is supplied by the customer including assembly instructions and the complete device does not function if assembled in a manner deviating from this.

2. However, the circumstances of the present case differ in one decisive respect. Due to the attacked software library, it is possible, in connection with the videos and documentation, in the sense of indirect patent infringement, which constitutes a hazard provision, that the customer manufactures a complete device in accordance with the patent. However, due to the multitude of different programming options and possibilities for assembling the hardware components, this is not established with the required certainty.

3. In an injunction to stop indirect patent infringement, consideration must always be given to whether, in view of the options remaining available to the patent infringer to offer or supply the essential means for other non-infringing purposes, a relative prohibition or an absolute prohibition should be imposed. In particular, consideration must be given to whether the danger of direct patent infringement by the customers of the indirect infringer can be sufficiently averted by a relative prohibition, for example through warning notices, and whether and with what effort a redesign of the means in such a way that it loses the suitability of being used in accordance with the patent is possible.

4. In proceedings for the grant of a provisional measure, a complete examination of all arguments raised against the validity of the patent in suit, which can be numerous as in nullity proceedings, is not possible. Rather, the number of arguments raised against the validity of the patent must generally be reduced to the three best from the perspective of the respondent (UPC_CFI_443/2023 ACT_589207/2023 (Local Division Munich), Order of 21 May 2024, 3rd Chamber). The background is that while a summary assessment of factual questions is conceivable, a summary examination of legal questions is not. The

> *court can either examine a legal question or not. If the court decides to examine the question, it will do so comprehensively. The only way to account for the summary nature of the proceedings is to reduce the number of legal questions to be examined comprehensively in this manner. This is made clear by the requirement to limit the number of arguments to three. Since it is incumbent upon the respondent to challenge the presumption of validity, it is primarily incumbent upon the respondent to select the three arguments that should be thoroughly examined by the court in provisional proceedings. 5. With regard to the divergent case law on temporal urgency, which grants the applicant only one month, e.g. in UPC_CFI_452/2023 (Local Division Düsseldorf), Order of 9 April 2024, GRUR-RS 2024, 7207, para. 128, the Local Division Munich maintains its case law and grants two months."*

COURT
Local Division in Munich

PROCEEDINGS
Application for provisional measures

PATENT
EP 3 866 051

MOBILE COMPUTER CONFIGURED TO READ MULTIPLE DECODABLE INDICIA

KEYWORDS

- Application for a Preliminary Injunction
- Demarcation of Direct and Indirect Patent I...
- Absolute Prohibition in Case of Indirect Pat...
- Limitation of Arguments Against the Validit...
- Temporal Urgency
- Urgency Period of Two Months
- Order of Security for Enforcement for the U...

SUMMARY
The Local Division in Munich issued a procedural order concerning a mobile computer configured to read multiple decodable indicia. The patent at issue relates to technology for reading multiple types of encoded information on mobile devices. According to the headnotes of the decision, direct infringement of a device claim may be found in certain cases. This can occur when the patent holder's customer completes the patented device, and holding the infringer liable only for indirect infringement would be inequitable. However, courts must be careful not to blur the distinction between direct and indirect infringement. Therefore, direct liability can only apply if the device completion is clearly defined and certain to occur. For example, this principle applies when a kit with assembly instructions is supplied and cannot function if assembled differently. The circumstances in this case differed significantly from that scenario. The defendant's software library, combined with videos and documentation, could enable customers to infringe indirectly. However, the multitude of programming options and hardware assembly possibilities meant the required certainty was not established. As a result, direct infringement liability could not be imposed. When granting an injunction against indirect infringement, courts must decide between a relative or absolute prohibition. In particular, they must assess whether remaining non-infringing uses make a relative prohibition sufficient. This means considering whether warning notices could adequately prevent customer infringement. Additionally, the feasibility and cost of redesigning the product to remove its infringing suitability must be weighed. Furthermore, provisional measure proceedings do not permit complete examination of all validity arguments raised by the defendant. Rather, the court should examine only the three strongest arguments from the defendant's perspective. This approach reflects that legal questions cannot be examined summarily like factual matters. Consequently, limiting examination to three arguments ensures comprehensive legal review within the summary nature of provisional proceedings. The defendant bears primary responsibility for selecting which three arguments warrant thorough examination. On the question of temporal urgency, the Local Division Munich maintains its established case law. The court grants applicants two months rather than one month, as adopted in other divisions.